

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kenny Robinson, Jr.	Team: Team # 3	CCRB Case #: 200705718	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/24/2007 7:30 PM	Location of Incident: Linden Boulevard and Lincoln Avenue	Precinct: 75	18 Mo. SOL 10/24/2008	EO SOL 10/24/2008	
Date/Time CV Reported Wed, 04/25/2007 12:59 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/25/2007 12:59 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Mack Lipinski	20935	932175	075 PCT
3. POF Jennifer Lavelle	20760	933921	075 PCT
4. POM Vito Nicoletta	01372	935400	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT John Mileski	02131	918590	075 PCT
2. SGT Domenico Colavito	00355	883666	075 PCT
3. POM Lewis Ortiz	13761	899683	075 PCT
4. POM Angelo Baez	11631	896980	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: Officers stopped the car in which § 87(2)(b) was an occupant.	
B.POM Vito Nicoletta	Abuse: PO Vito Nicoletta threatened to arrest § 87(2)(b)	
C.POM Mack Lipinski	Abuse: PO Mack Lipinski searched § 87(2)(b)	
D.POF Jennifer Lavelle	Abuse: PO Jennifer Lavelle searched the car in which § 87(2)(b) was an occupant.	
E.POM Vito Nicoletta	Abuse: PO Vito Nicoletta searched the car in which § 87(2)(b) was an occupant.	
F.POM Mack Lipinski	Abuse: PO Mack Lipinski strip-searched § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Synopsis

§ 87(2)(b) called the CCRB on April 25, 2007, and he reported that on April 24, 2007, at approximately 7:30 PM, while driving near the intersection of Linden Boulevard and Lincoln Avenue in Brooklyn, three uniformed officers in an unmarked vehicle stopped his car (Allegation A). § 87(2)(b) was instructed to get out of the car. § 87(2)(b) complied; and asked the officers why they stopped him. PO Nicoletta told § 87(2)(b) to keep his mouth shut or he would be arrested (Allegation B). PO Nicoletta put § 87(2)(b) against the rear of his vehicle, with his hands against it. PO Lipinski searched § 87(2)(b) (Allegation C), and while he was doing so PO Lavelle and PO Nicoletta searched § 87(2)(b)'s vehicle (Allegations D –E). PO Lipinski pulled § 87(2)(b)'s pants back and shined a flashlight down them (Allegation F). The officers eventually released § 87(2)(b) without summons or arrest and left the location.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Summary of Complaint

§ 87(2)(b) § 87(2)(b) black male, was interviewed at the CCRB on April 26, 2007 (encl. 4C – 4D). § 87(2)(b) viewed photographs on June 8, 2007 (encl. 4E – 4R).

On April 24, 2007, at approximately 7:30 PM, in the vicinity of Lincoln Avenue and Linden Boulevard in Brooklyn, officers stopped § 87(2)(b)'s 2000 Black Nissan Maxima. Before reaching this location, § 87(2)(b) departed from his residence, which is located at § 87(2)(b). § 87(2)(b) was wearing a purple T-shirt, a pair of jeans and some Converse tennis shoes. § 87(2)(b) had a tape recorder, which he uses for school, his wallet, and keys in his pocket. § 87(2)(b) had a cellular phone on his hip. § 87(2)(b) stopped at a bodega, which was located on Linden Boulevard about two blocks from Lincoln Avenue. § 87(2)(b) purchased some candy and food and he exited the bodega approximately three minutes later. § 87(2)(b) did not speak or interact with any other patrons inside of the bodega and after completing his purchase he returned to his vehicle and proceeded to travel on Linden Boulevard towards Lincoln Avenue. § 87(2)(b) was alone in his vehicle. Two minutes later, officers in an unmarked black vehicle turned on their turret lights and sirens to pull § 87(2)(b) over.

§ 87(2)(b) pulled over and put his car in park on Linden Boulevard before crossing Lincoln Avenue. The officers stopped their vehicle directly behind § 87(2)(b)'s car. All three uniformed officers exited their vehicle and § 87(2)(b) observed that PO #1, who was a white female, brunette, about 5'10", and 150 pounds, was the driver of the unmarked vehicle. The CCRB identified PO #1 as PO Jennifer Lavelle. PO #2, a uniformed white male and spoke with a Russian accent, approached the front passenger side of § 87(2)(b)'s vehicle. The CCRB identified PO #2 as PO Mack Lipinski. PO Lavelle and PO #3, a uniformed white male with a bald head, approached the driver's side of § 87(2)(b)'s vehicle. The CCRB identified PO #3 as PO Vito Nicoletta. § 87(2)(b) stated that his windows were rolled down, as it was hot outside. § 87(2)(b) was instructed to turn the engine off, which he complied with, and § 87(2)(b) also removed the keys from the ignition. PO Nicoletta instructed § 87(2)(b) to get out of his vehicle and to walk to the back of it. PO Nicoletta attempted to assist § 87(2)(b) out of his car by putting his hand on § 87(2)(b)'s arm, and § 87(2)(b) informed the officer that he was complying with the instructions that he was given. § 87(2)(b) exited his vehicle and asked why he was stopped. PO Nicoletta told § 87(2)(b) to keep his mouth shut or he would be arrested. PO Nicoletta grabbed § 87(2)(b)'s left arm and pulled him to the back of his vehicle. § 87(2)(b) stated that the force used was not excessive and he did not sustain any injuries. PO Nicoletta pushed § 87(2)(b)'s back against his Maxima. PO Lipinski came to the back of the vehicle where PO Nicoletta and § 87(2)(b) were. PO Lavelle spoke with PO Nicoletta, but § 87(2)(b) did not recall what was said between them.

PO Lavelle then proceeded to search § 87(2)(b)'s vehicle. § 87(2)(b) turned his head several times and he observed PO Lavelle search the front driver and passenger's seat, and the hand rest, which contained lotion,

glasses and compact discs. PO Lipinski approached § 87(2)(b) pulled his arms apart, and turned § 87(2)(b) around. PO Lipinski then frisked and searched § 87(2)(b)'s pockets. PO Lipinski placed § 87(2)(b)'s belongings that were inside of his pocket on the trunk of the car and asked § 87(2)(b) for his driver's license. § 87(2)(b) informed PO Lipinski that his license was in his wallet, which was on the trunk of the car. PO Lipinski told § 87(2)(b) to retrieve it; § 87(2)(b) complied. PO Nicoletta then turned § 87(2)(b) around to face the unmarked vehicle. PO Lavelle stopped searching the vehicle and PO Nicoletta proceeded to search § 87(2)(b)'s entire vehicle, with the exception of the trunk. PO Lipinski instructed § 87(2)(b) to take off his shoes and to pick them up and shake them, which he did. PO Lipinski made § 87(2)(b) pull his pant's leg up to make sure that he did not have anything in his socks and he searched § 87(2)(b) again. PO Lipinski then stated, "Okay, we are going to do it this way." PO Lipinski then pulled § 87(2)(b)'s pants open and PO Lipinski shined his flashlight down his underwear. PO Lipinski caused § 87(2)(b)'s pants to fall down. § 87(2)(b) was never told why he was stopped, he was not arrested or issued a summons and his license was never run. While the officers were in the process of leaving, PO Nicoletta stated that he did not like § 87(2)(b)'s attitude and that he should arrest him.

§ 87(2)(b) went to the 75th Precinct stationhouse and asked a black female with dreadlocks for the name of the on duty officer with a Russian accent. The female gave § 87(2)(b) the number to the CCRB.

On June 8, 2007, § 87(2)(b) viewed photographs numbered 1 –12 of officers who were assigned to the 75th Precinct's SNEU teams during the third tour on April 24, 2007. § 87(2)(b) did not recognize PO Paul Mazzarelli, PO Raymond Mies, Sgt. Domenico Colavito, Sgt. John Mileski, PO Herirerto Muniz, PO Eric Francis, PO Angelo Baez, PO Tyrone Kirton, PO John Chiam, and PO Lewis Ortiz. § 87(2)(b) believed that the photographs of PO Christopher Thomas and PO Mack Lipinski respectively resembled the officers that he referred to as Russian and Italian, which the investigation later determined were PO Lipinski and PO Nicoletta.

Results of Investigation

Identification of Officers Interviewed

At the 75th Precinct stationhouse § 87(2)(b) was told that the only officer on duty at that time with a Russian accent was PO Lipinski. The 75th Precinct's third tour roll call evinced that PO Lipinski was working as a member of the SNEU team and assigned to an unmarked vehicle (encl. 6B – 6D). The roll call further evinced that PO Lipinski was working with PO Lavelle and PO Nicoletta. § 87(2)(g) When PO Nicoletta was interviewed he stated that § 87(2)(b)'s vehicle was stopped because he fit the description of a person that they suspected purchased narcotics, as transmitted on the SNEU team point-to-point radios. None of the officers who were interviewed could recall which officers were assigned to the observation post. However, the roll call listed both Sgt. Mileski and Sgt. Colavito as being supervisors of the SNEU team. Sgt. Mileski was interviewed and he stated that there were two SNEU teams on the night that this alleged incident occurred and that he was not supervising the team that PO Lipinski was assigned to. Sgt. Colavito was interviewed and he was the supervisor of the team that PO Lipinski was assigned to. Sgt. Colavito stated that PO Baez and PO Ortiz were assigned to the observation post. § 87(2)(g).

Officers' Statements

PO Mack Lipinski, a white male with blonde hair and blue eyes, approximately 5'9", and 185 pounds, was interviewed at the CCRB on September 13, 2007 (encl. 5D – 5E).

PO Lipinski worked from 4:00 PM on April 24, 2007, until 12:35 AM on April 25, 2007. He was assigned to the 75th Precinct's Street Narcotics Enforcement Unit (SNEU) and he worked with PO Nicoletta and PO Lavelle. The officers were uniformed and they were assigned to marked vehicle #2314. PO Lipinski believed that he was the passenger of the marked vehicle. PO Lipinski did not have any memo book entries pertaining to this incident (encl. 5A – 5C).

On April 24, 2007, the observation post of the 75th Precinct's SNEU team put a description over the air, which PO Lipinski could not recall, of a person in a vehicle who bought drugs. PO Lipinski did not provide the location of the bodega because it was involved in an on-going investigation. PO Lipinski did not recall who was assigned to the observation post on the date of the incident. PO Lipinski remembered

that they observed a vehicle that matched the description that the observation post put over the air, a dark Nissan, and as a means to get the vehicle to pull over the turret lights and siren were turned on. PO Lipinski remembered that he initially observed the Nissan about a block away from the bodega. However, the driver accelerated his vehicle to speeds in excess of sixty miles per hour in the residential area. The driver of the vehicle finally pulled over on Lincoln Avenue and Linden Boulevard, after being pursued for approximately four blocks, and the officers exited their vehicle.

PO Lipinski approached the driver's side of the vehicle, and asked the driver, who was subsequently identified as § 87(2)(b) to put the car in park. § 87(2)(b) refused to comply. § 87(2)(b) asked PO Lipinski why he was stopped. § 87(2)(b) told PO Lipinski that he was an attorney and that he would "have his job." PO Lipinski asked § 87(2)(b) to put his car in park, to unbuckle his seat belt, and to produce his driver's license. § 87(2)(b) put the car in park, took off his seatbelt, and turned the ignition off, but he refused to provide PO Lipinski with his driver's license. PO Lipinski asked § 87(2)(b) if he had any weapons in his possession, which § 87(2)(b) answered in the negative. PO Lipinski asked § 87(2)(b) again if he had any weapons or anything in his car that he was not suppose to have, which § 87(2)(b) responded, "Not that I know of." § 87(2)(b)'s response raised PO Lipinski's level of suspicion. PO Lipinski opened § 87(2)(b)'s car door and asked him to step out. § 87(2)(b) complied. For § 87(2)(b)'s safety and the safety of the officer PO Lipinski asked § 87(2)(b) to come to the back of the vehicle. PO Lipinski stated that he placed his hand on § 87(2)(b)'s shoulder and guided him to the back of the vehicle.

PO Lipinski could not recall where his partners were and he did not remember if PO Nicoletta ever came to the back of the vehicle. PO Lipinski frisked § 87(2)(b)'s pocket and PO Lipinski asked § 87(2)(b) what a bulky object in his pocket was, § 87(2)(b) responded, "I don't know." PO Lipinski then asked § 87(2)(b) if the pants that he was wearing belonged to him and § 87(2)(b) told PO Lipinski, "I will have your job." PO Lipinski stated that the bulky object felt like the "butt of a gun," as it was solid plastic. § 87(2)(b) never told PO Lipinski that the object was a cellular phone, but PO Lipinski removed the item from his pocket and learned that it was a cellular phone. At some point during the incident the observation post drove past the location of the incident and confirmed the identity of the male who they suspected of buying drugs. § 87(2)(b)'s vehicle was never searched and § 87(2)(b) was never asked to remove his shoes. PO Lipinski stated that the only time a strip-search can be conducted is inside of a stationhouse and a sergeant has to be present. PO Lipinski never pulled the elastic of § 87(2)(b)'s underwear back and looked inside of them with a flashlight. PO Lipinski never threatened to arrest § 87(2)(b). A call for officer in need of assistance was put over the air and the officers immediately departed from the location of the incident. PO Lipinski believed that PO Nicoletta prepared the stop, question, and frisk report.

CCRB Statements

PO Jennifer Lavelle and **PO Vito Nicoletta** were interviewed at the CCRB on October 3, 2007 and December 11, 2007, respectively (encl. 5H – 5I and 5L – 5M). PO Lavelle is a 5'8", 140 pounds, white female, and she has brown hair and eyes. PO Nicoletta is a white male, about 5'6", approximately 155 pounds, and has a bald head.

PO Lavelle and PO Nicoletta worked from 4:00 PM on April 24, 2007, until 12:35 AM on April 25, 2007. The officers were assigned to the marked chase car of the 75th Precinct's Street Narcotics Enforcement Unit (SNEU). PO Lipinski was also present in this vehicle. PO Lavelle and PO Nicoletta did not have any memo book entries pertaining to this incident (encl. 5F – 5G and 5J – 5K).

Neither PO Nicoletta nor PO Lavelle recalled this incident. The officers did not recall any observation posts being located outside of a bodega near Linden Boulevard and Lincoln Avenue, which they acknowledged was within the confines of the 75th Precinct. The officers stated that there were not any on-going investigations involving narcotics being sold out of a bodega in this area. PO Nicoletta did not remember stopping any black Nissan Maximas or chasing any vehicles on the date of the incident. PO Lavelle did not recall searching any vehicles on the date of the incident. During the time PO Nicoletta and PO Lavelle have worked together, she does not remember PO Nicoletta ever putting his flashlight down an individual's underwear, and PO Nicoletta has not conducted a strip-search outside of a stationhouse. Neither of the officers recognized the photograph of § 87(2)(b)

CCRB Statement

Sgt. Domenico Colavito was interviewed at the CCRB on February 7, 2008 (encl. 5T – 5U).

Sgt. Colavito worked from 4:00 PM on April 24, 2007, until 12:57 AM on April 25, 2007, and he was assigned as the supervisor of 75th precinct's Street Narcotics Enforcement Unit (SNEU). On the date of incident, Sgt. Colavito worked with PO Kirton. The officers were uniformed and assigned to a marked van. The other members of the SNEU team included PO Baez, PO Ortiz, PO Nicoletta, PO Lavelle, and PO Lipinski. Sgt. Colavito specified that PO Baez and PO Ortiz were assigned to the observation posts. Sgt. Colavito did not have any memo book entries regarding this incident (encl. 5R – 5S).

On April 24, 2007, Sgt. Colavito was conducting routine SNEU operations within the confines of the 75th Precinct. The observation posts moved throughout the confines of the 75th Precinct and there were several locations that were observed on the date of the incident. The nearest location to Linden Boulevard and Lincoln Avenue in Brooklyn that was being observed on the date of incident was approximately seven blocks away and that location was not observed until 8:20 PM, and it was not a bodega. Sgt. Colavito did not recall observing any bodegas on the date of the incident and he did not recall PO Lavelle, PO Lipinski, or PO Nicoletta, putting over the air that they stopped a vehicle. Sgt. Colavito stated that if the observation post observes an individual purchasing narcotics then the observation post would verify the arrest either at the stationhouse or at the location of the incident. Sgt. Colavito did not recall stopping any vehicles or supervising a vehicle stop at the intersection of Lincoln Avenue and Linden Boulevard in Brooklyn on the night of the incident.

CCRB Statements

PO Angelo Baez and **PO Lewis Ortiz** were interviewed at the CCRB on April 1, and April 17, 2008, respectively (encl. 5P – 5Q and 5AA – 5AB). PO Baez is a Hispanic male, 5'7" and weighs 180 pounds. PO Ortiz is a Hispanic male, he is 5'5", and weighs 215 pounds.

PO Baez worked from 4:00 PM on April 24, 2007 until 12:00 AM on April 25, 2007. The officers were assigned to the observation post for the 75th Precinct's Street Narcotics Enforcement Unit team. The officers were in plainclothes and assigned to an unmarked vehicle. They did not have any memo book entries pertaining to this incident (encl. 5N – 5O).

Neither PO Baez nor PO Ortiz recalled this incident. PO Baez stated that on April 24, 2007, there were several locations that the observation post was watching, but he could not specify any of those locations. Both officers confirmed that Lincoln Avenue and Linden Boulevard were within the confines of the 75th Precinct. However, neither of the officers recalled confirming the identity of a person suspected of buying drugs at this location on the date of incident. PO Ortiz was not familiar with any drug-prone locations within a few block radii of Lincoln Avenue and Linden Boulevard. Whereas, PO Baez stated that there was a bodega on Haley Street, which is three blocks away from Linden Boulevard and Lincoln Avenue, and it is a drug prone location because people sell marijuana both inside and outside of the bodega. PO Baez stated that the bodega is a location that they typically observe, but he could not specify if they visited that area on the night in question. PO Baez and PO Ortiz were not familiar with any type of on-going investigation involving a bodega in the vicinity of Linden Boulevard and Lincoln Avenue. PO Baez and PO Ortiz did not recall going to Lincoln Avenue and Linden Boulevard on the date of incident to confirm the identity of anyone, and they did not recall observing anyone in a black Nissan Maxima engage in a narcotics transaction on the date of the incident. The officers stated that when they are assigned to the observation post and the chase car stops an individual based upon the description that they put over the air, they confirm the identity of the person that was stopped either at the stationhouse or at where the person was stopped. Neither PO Baez nor PO Ortiz recognized the photograph of § 87(2)(b)

CCRB Statement

Sergeant John Mileski was interviewed at the CCRB on January 10, 2008 (encl. 5Y – 5Z).

Sgt. Mileski worked from 2:50 PM until 11:47 PM on April 24, 2007, and he was the supervisor of the second team of officers who were assigned to the 75th Precinct's Street Narcotics Enforcement Unit

(SNEU). Sgt. Mileski was assigned to unmarked vehicle and in the same vehicle with him were PO Ward and PO Muniz. The officers were in plainclothes. Sgt. Mileski did not have any memo book entries pertaining to this incident (5V – 5X).

On April 24, 2007, Sgt. Mileski was assigned to supervise the second of three SNEU teams that the 75th Precinct has. On the date of the incident, Sgt. Mileski did not work or interact with PO Lavelle, PO Nicoletta, or PO Lipinski. Sgt. Mileski does not typically serve in the capacity as a supervisor for any of the three SNEU teams and he usually is the patrol supervisor, however, on this evening he was filling in. He did not recall responding to Lincoln Avenue and Linden Boulevard.

Police Documents

Stop, Question, and Frisk Index (encl. 6A)

The stop, question, and frisk index for April 24, 2007, for the confines of the 75th Precinct, which is the precinct of occurrence for this incident, did not have a listing for § 87(2)(b).

Stop, Question, and Frisk Report (encl. 7H)

The stop, question, and frisk report for § 87(2)(b) was requested, but the request yielded negative results.

Roll Call (encl. 6B – 6D)

The 75th Precinct's third tour roll call confirmed that Sgt. Colavito was the supervisor of the SNEU team and that PO Lipinski, PO Lavelle, and PO Nicoletta were working together.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Officers' CCRB Histories (encl. 2A – 2F)

Neither PO Lipinski nor PO Lavelle has any substantiated allegations on their records during their four year-tenures. PO Nicoletta does not have any substantiated allegations his record during his three-year-tenure.

§ 87(2)(b)'s CCRB History (encl. 3A)

§ 87(2)(b) does not have any other complaints filed with the CCRB.

Conclusions and Recommendations

Identification of Subject Officers

PO Lipinski stated that § 87(2)(b)'s vehicle was stopped because his vehicle matched the description that the observation post put over their point-to-point radios. However, when PO Baez and PO Ortiz who were assigned to the observation posts were interviewed they did not recall putting a description of a black Nissan Maxima over the air. The observation post also did not recall observing any bodegas in the vicinity of the location of where § 87(2)(b)'s vehicle was stopped. PO Lavelle and PO Nicoletta did not recall this incident. § 87(2)(g)

§ 87(2)(b) stated that a short white male officer who had a bald head threatened to arrest him and searched his vehicle. PO Nicoletta is a short white male with a bald head and during § 87(2)(b)'s photographic viewing he identified PO Nicoletta as the officer who searched his vehicle. § 87(2)(g) § 87(2)(b) stated during his interview that an officer searched him and that same officer strip-searched him. PO Lipinski admitted that he searched § 87(2)(b) § 87(2)(g). § 87(2)(b) also alleged that the female officer who was present searched his car. PO Lavelle was working with PO Lipinski and PO Nicoletta at the time of this incident and she matched the description that § 87(2)(b) provided of the female officer. § 87(2)(g). Per PO Lipinski's own admission he searched § 87(2)(b) § 87(2)(g), § 87(4-b)

Disputed and Undisputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g)

§ 87(2)(g)

Allegation A: Officers stopped the car in which § 87(2)(b) was an occupant.

PO Lipinski claimed that § 87(2)(b) was stopped because he matched the description of a person who was believed to purchase narcotics. § 87(2)(g)

Allegation B: PO Vito Nicoletta threatened to arrest § 87(2)(b)

Allegation D: PO Jennifer Lavelle searched the car in which § 87(2)(b) was an occupant.

Allegation E: PO Vito Nicoletta searched the car in which § 87(2)(b) was an occupant.

Allegation F: PO Mack Lipinski strip-searched § 87(2)(b)

PO Nicoletta and PO Lavelle did not recall this incident. PO Lipinski was uncertain if PO Nicoletta interacted with § 87(2)(b) and PO Lipinski stated that § 87(2)(b)'s car was never searched. PO Lipinski also denied pulling the elastic of § 87(2)(b)'s undergarment and looking inside of it with a flashlight. § 87(2)(g)

§ 87(2)(g)

Allegation C: PO Mack Lipinski searched § 87(2)(b)

It undisputed that PO Lipinski searched § 87(2)(b) § 87(2)(g)

PO Lipinski stated that during the frisk he felt a “solid plastic object,” which felt like “a butt of a gun.” § 87(2)(g)

§ 87(2)(g), § 87(4-b)

Investigator:		Date:
	Kenny Robinson, Jr.	
Supervisor:		Date:
Reviewed by:		Date:
Reviewed by:		Date: